BEFORE THE
STATE OF NEW YORK
PUBLIC SERVICE COMMISSION

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In the Matter of

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service.

CASE 25-E-0072

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Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service.

CASE 25-G-0073

May 30, 2025

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Prepared Testimony of:

Dana Levenberg, New York State
Assemblymember, 95th District

8 Revolutionary Road
Ossining, NY 10562

Q. Please state your name and business address.

A. My name is Dana Levenberg. My business address is 8 Revolutionary Road, Ossining, NY 10562. I am presenting testimony in this proceeding as a New York State Assemblymember who represents the 95th District ("AD 95"), registered in this rate case as the Office of NYS Assemblymember Dana Levenberg.

Q. Have you previously submitted testimony before other state regulatory commissions?

A. No, I have not.

Q. Are you providing exhibits in your testimony?

A. Yes, I am sponsoring the following exhibits:

- Exhibit_(MOA Levenberg-01): Responses to a constituent feedback form "Assembly Districts 92, 93, & 95 Utility Feedback Survey" closed on May 28, 2025. Please note personal identifying information (e-mail addresses) has been removed and the data has been filtered to show only respondents from AD 95, specifically those who indicated their residency as Briarcliff Manor; Briarcliff Manor, NY; Buchanan; Cortlandt; Cortlandt Manor; Croton on Hudson; Croton-on-Hudson; Lake Peekskill, Cortlandt; Ossining; Ossining, NY; Peekskill; Peekskill, NY; or Village of Briarcliff Manor.
- Exhibit_(MOA Levenberg-02): Executive Summary of the New York State Climate Action Council Scoping Plan, December 2022.
- Exhibit_(MOA Levenberg-03): The webpage for "Electric School Buses" on the New York State Energy Research and Development

Authority ("NYSERDA") website, accessed May 27, 2025.

- Exhibit_(MOA Levenberg-04): Select responses from Con Edison to information requests I made in these proceedings.

Q. Please highlight your professional experience.

A. I began my term in the New York State Assembly on January 1, 2023. Prior to serving in this role, I was the Ossining Town Supervisor from January 2016 through December 2022. Before my tenure as Supervisor, I was Chief of Staff to Assemblywoman Sandy Galef and a Trustee on the Ossining Union Free School District Board of Trustees. In all these capacities, I have had extensive interactions with the public and assisted many constituents with casework, including cases involving Con Edison. As Town Supervisor, I also worked with Con Edison closely during responses to major storm events and restoring outages.

Q. Why is a state legislator's participation relevant to a utility rate case?

A. It is the responsibility of a state legislator to listen to their constituents and represent their needs. Nearly all my constituents are serviced by Con Edison and are affected by rate increases. Through my participation in this rate case, I intend to represent my constituents and advocate for fair and just rates for electric and gas service in Con Edison territory.

Q. What is the purpose of your testimony?

A. The purpose of my testimony is to elevate the levels of satisfaction and dissatisfaction with Con Edison's rates, charges, customer service, programs, and storm response expressed to my office by my

constituents in Con Edison's service territory or brought to my attention in the course of my service as an Assembly Member. There are extensive affordability challenges among residential customers in AD 95 that must be raised as part of this process. Additionally, I believe it is imperative to offer policy recommendations that would ensure Con Edison does their part to meet the state's climate goals set forth in the Climate Leadership and Community Protection Act ("CLCPA") and associated Scoping Plan.

Q. Are you concerned about the rate increase proposed by Con Edison?

A. Yes. In a recent survey of constituents in the 92nd, 93rd, and 95th Assembly Districts (Exhibit_(MOA Levenberg-01)), respondents overwhelmingly indicated (on a scale of 1 to 5) their satisfaction with gas and electric delivery charges as very low. Of the 202 total respondents, 65 respondents were from AD 95 (see Exhibit_(MOA Levenberg-01)). Of the 53 respondents from AD 95 who rated their satisfaction of their gas delivery charges, 37 rated their satisfaction at 1, the lowest value of satisfaction (from Exhibit_(MOA Levenberg-01)). Of the 65 respondents from AD 95 who rated their satisfaction of their electricity delivery charges, 34 rated their satisfaction at 1, also the lowest value of satisfaction (from Exhibit_(MOA Levenberg-01)). These responses indicate to me that the dissatisfaction with their utility delivery rates is widespread. Supplemental written responses from constituents underscored their frustration, with responses like, "Delivery Charges have increased exponentially in the past 2 years. Unaffordable.

I cannot afford food and basic necessities due to astronomical bills. I conserve carefully and my bills are still extremely high," and "The delivery fees are extremely high. No matter the energy conservation efforts we use in the house, the bills are still over double or more because of the delivery fees alone…" (From Exhibit_(MOA Levenberg-01). My constituents are concerned about rising costs and frustrated that they are unable to control or budget utility expenses in their homes because of the rising delivery costs.

Q. What is the Climate Leadership and Community Protection Act ("CLCPA") and associated Scoping Plan?

A. The CLCPA was enacted in 2019 and is one of the most ambitious climate laws in the nation and included goals of achieving a reduction in economy wide greenhouse gas ("GHG") emissions of 40% by 2030 and 85% by 2050 from 1990 levels. It also called for the adoption of a Scoping Plan under the direction of a 22-member Climate Action Council to be completed by January 1, 2023. The Scoping Plan sets forth recommendations that will set the course for the state to reach the ambitious goals of the CLCPA (Exhibit_(MOA Levenberg-02)).

Q. How are the recommendations of the Scoping Plan organized?

A. The Scoping Plan organizes its recommendations by sector – Transportation, Buildings, Electricity, Industry, Agriculture, Forestry, and Waste (From Exhibit_(MOA Levenberg-02)).

Q. What sectors are relevant to this rate case?

A. The Transportation, Buildings, and Electricity sectors are relevant to

this rate case.

Q. Please summarize the recommendations for the Transportation, Buildings, and Electricity sectors.

A. The Scoping Plan Executive summary indicates that the recommendations for these sectors are as follows: Transportation – by 2030 nearly all light-duty vehicle sales and almost half of new medium- and heavy-duty vehicle sales will be zero-emissions and by 2050 nearly all vehicles in New York State will have zero tailpipe emissions; Buildings – by 2030 the majority of new purchases for space and water heating will be heat pumps, with one to two million homes and 10% to 20% of commercial space using them by 2030, hundreds of thousands of additional homes and commercial buildings becoming efficiently electrified each year, and the 2050 vision for the buildings sector sees 85% of homes and commercial building space electrified statewide; Electricity – the Scoping Plan anticipates annual electricity demand will more than double by 2050 (From Exhibit_(MOA Levenberg-02)).

Q. Are there other state mandates associated with electrification that are relevant to your testimony?

A. Yes, the mandate passed by the legislature in 2022 requiring that all school bus purchases must be electric starting in 2027 in New York State. This mandate also requires that all school district fleets be fully electrified by 2035 (Exhibit_(MOA Levenberg-03)).

Q. Is Con Edison doing its part to achieve the recommendations of the Scoping Plan?

A. No, they are not meeting the demand for electrification. According to Con Edison's response to my interrogatories, Con Edison received approximately 19,520 requests for electric and gas service upgrades between January 1, 2020 and December 31, 2024. Of those requests, 2,469 requests were filled (From Exhibit_(MOA Levenberg-04). This indicates a roughly 13% completion rate for these requests. This is woefully inadequate as many homes require electric service upgrades to accommodate electrification of home heating, cooling, and appliances which are key to meeting the Scoping Plan's goals. Even if we assume half of the total requests were for electric service upgrades only (9,760), the completion rate is 50% which is significantly less than the Scoping Plan's goal of 85% of homes and commercial building space electrified by 2050 (From Exhibit_(MOA Levenberg-02)).

Q. Do you have recommendations for Con Edison to improve its assistance to customers who wish to electrify their households?

A. Although I applaud Con Edison's proposals to attempt to accommodate demand growth, expand programs to install services for new buildings, and to complete an affordable multi-family electrification pilot, Con Edison must do better in this rate proposal to provide customer service assistance to customers who seek to electrify. Con Edison should assign customer service personnel exclusively for electrification requests and internally monitor completion rates to seek ways to improve their completion rate in this proposal.

Q. Are there particular groups of customers that you are concerned are

unable to meet their electrification needs due to delays in completion of service upgrades by Con Edison?

A. Yes, I am particularly concerned about school district and municipal accounts due to the electric school bus mandate. According to Con Edison's response to my interrogatories, Con Edison does not track if requests for upgrades are made for municipal accounts or school district accounts. They simply provide an optional question to allow applicants to self-identify as "municipal or government agency" (From Exhibit_(MOA Levenberg-04). Due to this lack of tracking, Con Edison was unable to account for how many service upgrades were requested by municipal or government agencies and of those requests, how many were completed. In my Assembly District, the Croton-on-Hudson Union Free School District, the Village of Croton-on-Hudson, and the Ossining Union Free School District reached out to my office for assistance advocating to Con Edison to complete service upgrades associated with the completion of clean energy projects including charging infrastructure for municipal electric vehicles, electric school buses, and solar panels. The Village of Croton-on-Hudson has been a leader and early adopter of electric school buses so their struggle to upgrade their electric infrastructure to accommodate their fleet is a harbinger of other districts' efforts in Con Edison territory.

Q. Do you have recommendations for Con Edison to improve its efforts to enable school district customers to electrify?

A. Yes, due to the anticipated increase in demand across its service

territory in the coming years, I recommend that Con Edison establish a webpage with collated guidelines and resources associated with electric upgrades necessary for school districts to electrify their fleet by the 2027 and 2035 deadlines. Con Edison should also consider appointing a school bus electrification "czar" to assist school districts with this transition. NYSERDA has implemented similar efforts which have been invaluable resources to districts across the state to obtain grants for the purchase of their new electric school buses (From Exhibit_(MOA Levenberg-03)). However, these efforts are futile without the participation of the utility to ensure school districts will have the electric infrastructure they need to allow for reliable charging. Con Edison must track requests for and completed service upgrades for school districts in the coming years for quality control during this critical timeframe for meeting our state's climate goals.

Q. Do you have any cost reduction suggestions for this rate proposal?

A. Yes. I am a co-sponsor of legislation that would eliminate the "obligation to serve" and "100-foot rule" that utilities must abide by as it relates to gas service. I asked Con Edison how many miles of gas pipe were planned due to the "obligation to serve" and "100-foot rule" and they indicated it was a total of 42 miles, including gas main and service connections (From Exhibit_(MOA Levenberg-04)). According to Con Edison's Exhibit_(GIOP-1), the average price per foot for gas line replacement is $1,166 during this rate proposal. I calculated the product of the distance in feet of gas pipe (42 miles x 5,280 feet per

mile = 221,760 feet) by the average price per foot for this rate proposal and came to the value of $259,738,160 (221,760 feet x $1,166 = $258,572,160) as the total approximate cost of replacing gas infrastructure due to the "obligation to serve" and "100-foot rule." If legislation were approved to eliminate these requirements, and thereby these costs, Con Edison would realize modest savings that should be returned to ratepayers.

Q. Do you have concerns about executive compensation at Con Edison?

A. Yes. The highest paid employees at Con Edison include the Chief Executive Officer, Chief Financial Officer, Chief Information Officer, and Presidents and Vice Presidents. These salaries ranged from approximately $400,000 to $1.4 million as of December 31, 2024 (From Exhibit_(MOA Levenberg-04)). Most of these individuals make more than double or quadruple the Governor of New York's salary ($250,000) and are well outside of the range of most households' incomes in the Con Edison service territory. At a time when so many families and small businesses are struggling to make ends meet, Con Edison should consider reducing various executive salaries to be more in line with other public sector executives, like the Governor of New York.

Q. Are there other elements of the rate proposal that you are concerned with?

A. Yes, while I submit the testimony above, there are other issues that I am concerned about, which includes a lack of information on whether rate

increases are going towards funds to pay legal settlements; a lack of information on out of state contractors and in state contractors; and that the return on equity requested by Con Edison is too high and I believe more of the cost burden should be shifted to shareholders from ratepayers.

Q. Does this conclude your testimony?

A. Yes.